

NO WORK PERFORMED AFFIDAVIT

(ATTACH TO INVOICE; ONLY USE IF CONTRACTOR DID NOT PERFORM WORK FOR OMO)

Name of Contractor _____

OMO# _____

STATE OF _____ }

SS: COUNTY OF _____ }

_____, being duly sworn, deposes and says:

1. I certify that I am an authorized representative of the contractor retained by the NYC Department of Housing Preservation and Development ("HPD") to perform emergency repairs ("contractor") for the Open Market Order ("OMO") stated at the top of this page ("subject OMO").
2. The contractor was directed by HPD in the Confirmation of Award for the subject OMO to go to the building located at _____
[enter the full address for the OMO] in response to an emergency condition.
3. The contractor could NOT perform the repair work for the subject OMO and is entitled to a payment of service charge of the following amount: \$_____.

The contractor could NOT perform the repair work for the subject OMO for the following reason(s):
Fill in item 4, 5, 6 OR 7 below, filling in applicable info for only the item below that best explains why the contractor was not able to perform the work for the subject OMO.

4. The area where work was required to be performed was **physically inaccessible**.
The inaccessibility was due to [fill in reason area of work was inaccessible]:

- a. The contractor made at least two attempts to gain access on the following dates: _____
and _____.
- b. The contractor attempted to contact the tenant by telephone on the following dates:
_____ and _____.
5. When the contractor arrived at the work site on [fill in applicable date] _____,
the contractor found the **work described in the OMO had been completed by others**.
6. When the contractor arrived at the work site on [fill in applicable date] _____, the
contractor found the **work described in the OMO being performed by others**.
 - a. The person/contractor performing work gave their name as: _____ and
stated their relationship to the building as: _____.
 - b. The person/contractor performing work refused to give their name **[Circle this item only if applicable]**.

OMO # _____

7. When the contractor arrived at the work site on the following date(s), _____, the contractor was **denied access** by an individual(s) who prevented it from completing the work: Fill in all information provided by the individual(s) denying access in items a and b below. If, and only if, the individual(s) denying access did not provide information for any part of items a and b below, fill in the words "did not provide" where applicable. Also fully fill in item c.

- a. The individual(s) denying access stated their name(s) as: _____ and stated their relationship to the building as: _____ (e.g. a tenant, the owner, the owner's employee, managing agent, super, etc...).
- b. Telephone number(s) of the individual(s) denying access _____.
- c. Description of individual(s) denying access _____

(e.g. male/female, tall/short, dark/light hair)

Please Provide Your Notarized Signature Below, Attesting to the Statement Below.
The Notary Witnessing Your Signature Must Fill in the Info for the Notary Section Below.
Your Notary Must Also Provide its Current, Non-Expired Notary Stamp Near The Notary's Signature.

I affirm that all of the foregoing is true. I understand that any false statement made by myself or the contractor may result in any authorized penalty and consequence to myself and the contractor.

Signature

Type or Print Name

Sworn to me this ____ day of _____, 20__

Notary Public